

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                |                                                                                            |                                               |                                                       |                                               |                                          |
|--------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|-----------------------------------------------|-------------------------------------------------------|-----------------------------------------------|------------------------------------------|
| Investigator:<br>Laura Strauss                                                 | Team:<br>Squad #05                                                                         | CCRB Case #:<br>202002163                     | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input checked="" type="checkbox"/> U.S. |
|                                                                                |                                                                                            |                                               | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury          |
| Incident Date(s)<br>Sunday, 03/15/2020 8:33 PM, Monday,<br>02/08/2021 11:53 AM | Location of Incident:<br>Mother Gaston Boulevard and New Lots<br>Avenue; 100 Church Street | 18 Mo. SOL<br>5/2/2022                        | Precinct:<br>73                                       |                                               |                                          |
| Date/Time CV Reported<br>Sun, 03/15/2020 9:48 PM                               | CV Reported At:<br>CCRB                                                                    | How CV Reported:<br>Call Processing<br>System | Date/Time Received at CCRB<br>Sun, 03/15/2020 9:48 PM |                                               |                                          |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Dana Ladson      | 10196  | 941282 | 073 PCT |
| 2. POM Jamal Moya       | 20924  | 958958 | 073 PCT |
| 3. POM Nicholas Lettini | 21384  | 959751 | 073 PCT |
| 4. POM Nicolas Fratto   | 13727  | 967513 | 073 PCT |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. POF Nadia Thomas  | 22193     | 962839 | 073 PCT  |
| 2. POM Brian Ramirez | 22014     | 946143 | 073 PCT  |

| Officer(s)          | Allegation                                                                                                                                                                              | Inv. Div. Recommendation |
|---------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| A . POM Jamal Moya  | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jamal Moya stopped the vehicle in which § 87(2)(b) was an occupant.                | A . Exonerated           |
| B . POM Dana Ladson | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson stopped the vehicle in which § 87(2)(b) was an occupant.               | B . Exonerated           |
| C . POM Dana Ladson | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson interfered with § 87(2)(b) use of a recording device.                  | C . Substantiated        |
| D . POM Dana Ladson | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson issued a retaliatory summons to § 87(2)(b)                             | D . Substantiated        |
| E . POM Jamal Moya  | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jamal Moya searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. | E . Substantiated        |
| F . POM Dana Ladson | Off. Language: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) | F . Substantiated        |

| Officer(s)            | Allegation                                                                                                                                                    | Inv. Div. Recommendation |
|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| G . POM Dana Ladson   | Discourtesy: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson spoke discourteously to § 87(2)(b)     | G . Substantiated        |
| H . POM Dana Ladson   | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson damaged § 87(2)(b) property.                 | H . Substantiated        |
| I . POM Dana Ladson   | Abuse: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson threatened § 87(2)(b) with the use of force. | I . Substantiated        |
| J . POM Dana Ladson   | Discourtesy: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson spoke discourteously to § 87(2)(b)     | J . Substantiated        |
| K . POM Dana Ladson   | Untruthful Stmt.: On February 8, 2021, at 100 Church Street in Manhattan, Police Officer Dana Ladson provided a false official statement to the CCRB.         | K . Substantiated        |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                                                                                    | [REDACTED]               |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                                                                                    | [REDACTED]               |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                                                                                    | [REDACTED]               |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                                                                                    | [REDACTED]               |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                                                                                    | [REDACTED]               |

## Case Summary

On March 15, 2020, § 87(2)(b) filed this complaint via the CCRB's call processing system on behalf of herself and her boyfriend, § 87(2)(b).

On March 15, 2020, at approximately 8:33 p.m., § 87(2)(b) was sitting in the driver's seat of § 87(2)(b) vehicle, which was double-parked in a bike lane, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn. Police Officers Jamal Moye and Dana Ladson, both assigned to the 73<sup>rd</sup> Precinct, stopped § 87(2)(b) (**Allegations A-B: Abuse of Authority, exonerated**). § 87(2)(b) and her friend, § 87(2)(b), exited a nearby building with § 87(2)(b) and § 87(2)(b) young children. § 87(2)(b) approached the vehicle and, with the officers' permission, placed the two young children in the back seat. § 87(2)(b) also wanted to sit in the vehicle because the weather was cold, but PO Ladson refused to let her enter the vehicle. § 87(2)(b) told PO Ladson that she was going to sue him and took a photograph of his shield. PO Ladson repeatedly ordered § 87(2)(b) to provide her identification, but she refused to provide it. PO Ladson then grabbed § 87(2)(b) wrist and removed her cellphone from her other hand, thereby interfering with her use of a recording device (**Allegation C: Abuse of Authority, substantiated**). PO Ladson took § 87(2)(b) ID and ultimately issued her a retaliatory disorderly conduct summons without sufficient cause (**Allegation D: Abuse of Authority, substantiated**).

PO Moye handcuffed § 87(2)(b) after the officers discovered he had two outstanding warrants. While the officers waited for additional officers to arrive, PO Moye searched § 87(2)(b) vehicle and did not find any contraband (**Allegation E: Abuse of Authority, substantiated**). PO Ladson told § 87(2)(b) to take § 87(2)(b) to "charm school," said that he did not have time for § 87(2)(b) "trying to get out the projects lawsuit," and told § 87(2)(b) to tell § 87(2)(b) to "go get a job" (**Allegation F: Offensive Language, substantiated; Allegation G: Discourtesy, substantiated**). Eventually, Police Officers Nadia Thomas and Brian Ramirez, also from the 73<sup>rd</sup> Precinct, arrived on scene. The officers eventually found marijuana on § 87(2)(b) person. Before lodging § 87(2)(b) for transport, PO Ladson damaged § 87(2)(b) property by cutting off a piece of his clothing with a knife (**Allegation H: Abuse of Authority, substantiated**). § 87(2)(b) and PO Ladson began arguing with each other. PO Ladson told § 87(2)(b) "So we could get it on at the precinct, then. Let's get it on in the cell" (**Allegation I: Abuse of Authority, substantiated**). PO Ladson told § 87(2)(b) "Grow some height," and told her, "Go get a job" (**Allegation J: Discourtesy, substantiated**). In addition to § 87(2)(b) summons for disorderly conduct (BR 01), PO Ladson issued § 87(2)(b) a criminal summons for unlawful possession of marijuana (BR 02).

On February 8, 2021, at approximately 11:53 a.m., PO Ladson provided a false official statement to the CCRB (**Allegation K: Untruthful Statement, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation obtained BWC footage recorded by PO Moye, PO Ladson, PO Thomas, and PO Ramirez (BR 03-06, summarized at BR 07-10). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

PO Lettini has since been reassigned to the Field Intelligence Program. PO Ramirez has since been

reassigned to Patrol Borough Brooklyn North Specialized Units.

On September 12, 2020, this case was reassigned from Inv. Faria Tasnim to Inv. Conor O'Shea after Inv. Tasnim's departure from the CCRB. On September 8, 2021, this case was reassigned from Inv. O'Shea to the undersigned after Inv. O'Shea's departure from the CCRB.

### **Findings and Recommendations**

**Allegation (A) Abuse of Authority: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jamal Moya stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (B) Abuse of Authority: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson stopped the vehicle in which § 87(2)(b) was an occupant.**

It is undisputed that § 87(2)(b) was double-parked in a bicycle lane when PO Moya and PO Ladson stopped the vehicle. § 87(2)(b) was not arrested or issued a summons for any vehicle infractions.

The investigation was unable to obtain a statement from § 87(2)(b) testified that § 87(2)(b) was driving her vehicle, which had a temporary license plate (BR 11).

PO Ladson's BWC footage (BR 04, at 00:00) confirms that § 87(2)(b) was alone in the driver's seat of the vehicle, which was double-parked in the bicycle lane with its hazard lights flashing. PO Ladson and PO Moya both testified (BR 12-13) that they stopped the vehicle because § 87(2)(b) was double-parked. PO Ladson also noted that he saw that the vehicle's plate was expired.

Double parking is prohibited except when necessary to avoid conflict with other traffic, or when in compliance with law or the directions of a police officer. NY Vehicle and Traffic Law § 1202 (a)(1)(a) (BR 14).

§ 87(2)(g)  
It is therefore recommended that **Allegations A-B** be closed as **exonerated**.

**Allegation (C) Abuse of Authority: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson interfered with § 87(2)(b) use of a recording device.**

**Allegation (D) Abuse of Authority: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson issued a retaliatory summons to § 87(2)(b)**

It is undisputed that PO Ladson took § 87(2)(b) cellphone for the duration of the vehicle stop and that he issued her a summons for disorderly conduct.

PO Ladson's BWC footage (BR 04, at 01:13) shows that § 87(2)(b) places her children in the backseat of the vehicle and then walks toward the front passenger side. She stops in front of PO Ladson, next to the rear passenger door. § 87(2)(b) does not touch the front passenger door or the handle. PO Ladson tells § 87(2)(b) that she cannot get into the vehicle and that she must wait until § 87(2)(b) is done. § 87(2)(b) asks why she cannot get into the vehicle and says that she does not want to stand outside because it is cold. She does not attempt to enter the vehicle. § 87(2)(b) then says she is going to call her friend who is a sergeant. PO Ladson and § 87(2)(b) argue back and forth about how he allowed the children to sit in the vehicle. § 87(2)(b) tells PO Ladson that she is going to sue him and PO Ladson asks § 87(2)(b) who she thinks she is talking to. They continue to

argue and § 87(2)(b) expresses her frustration about the situation but does not yell or curse. § 87(2)(b) calls her friend and begins explaining what happened. At 05:00, § 87(2)(b) says to PO Ladson, "Let me take a picture of your badge number." § 87(2)(b) then holds her cellphone up in front of her body and takes a photograph with flash of PO Ladson's chest. She appears to be approximately one or two feet away from PO Ladson. PO Ladson then immediately asks § 87(2)(b) for her identification. PO Ladson repeatedly tells § 87(2)(b) "Present your ID," but she does not provide it. At 05:17, PO Ladson appears to grab § 87(2)(b) arm or arms while ordering her to present her identification. § 87(2)(b) tells him not to touch her phone. PO Ladson says that he is demanding her identification because she is interfering with the vehicle stop. § 87(2)(b) appears to still be talking to her friend on the phone, possibly through wireless headphones, and she says, "He snatched my phone." PO Ladson says that he will return her phone when she gives him her identification. It seems that § 87(2)(b) ultimately provides her identification because PO Ladson thanks her and walks away. There is no visible crowd gathered. Throughout this timeframe, PO Moye speaks with § 87(2)(b) runs his license, and handcuffs him without incident. At 15:18, PO Ladson says to § 87(2)(b) "Oh cause, yo, once I start hearing 'lawsuit' and I'm getting sued, you have to go. I don't got time for her 'trying to get out the projects' lawsuit. No, no, once she trying to sue me, you going down for your warrant, she get her summons, have a good night." At 18:37, PO Ladson tells § 87(2)(b) "If you wasn't disrespectful, I wouldn't have took your ID." At 31:12, PO Ladson says to other officers in reference to § 87(2)(b) "When she started taking pictures of my shield, saying you gonna sue me, yeah, you're getting a summons." PO Ladson returned § 87(2)(b) cellphone to her at the conclusion of the incident.

§ 87(2)(b) testimony was generally consistent with the BWC footage. She specified that she was approximately one foot away from PO Ladson when she photographed his shield number. She also recounted that PO Ladson grabbed her wrist by wrapping his entire left hand around her wrist area, pulled her towards him such that he almost made physical contact with her body, and yanked her cellphone from her right hand with his right hand. § 87(2)(b) unsuccessfully attempted to retain her grasp on the phone.

PO Ladson's testimony was somewhat inconsistent with the BWC footage. He recounted that, after § 87(2)(b) put her children in the backseat, she tried to enter the front passenger seat by tensing her body and yanking on the door handle. PO Ladson kept taking § 87(2)(b) hand off the door handle, blocked her from entering the vehicle, and told her to step away from the door. § 87(2)(b) became very agitated and hostile, and she acted disorderly. It seemed to PO Ladson that § 87(2)(b) wanted to fight, based upon the way she was cursing and disobeying his lawful order to step away from the door. PO Ladson did not know if § 87(2)(b) took a photograph of him, but he confirmed that she had her phone out. § 87(2)(b) put her phone in PO Ladson's face and waved it back and forth, a few inches away from his face, for approximately five to ten seconds. § 87(2)(b) distracted PO Ladson from being able to see PO Moye on the other side of the vehicle, which he needed to do to ensure that PO Moye was safe.

In PO Ladson's understanding, civilians are able to record police activity in public, but they may be arrested for obstructing governmental administration (OGA) if they prevent an officer from doing his job by recording. PO Ladson took § 87(2)(b) phone away from her because it was blocking his vision. PO Ladson testified that § 87(2)(b) committed disorderly conduct by yelling, cursing, and getting "in between" PO Ladson and PO Moye while trying to enter the vehicle. PO Ladson recounted that a crowd started to gather during the incident, and he estimated that approximately 10-15 bystanders from a nearby housing complex watched the incident. PO Ladson denied that his decision to issue § 87(2)(b) a summons was impacted by the prospect of her filing a lawsuit against him, the fact that § 87(2)(b) attempted to record him, or the fact that § 87(2)(b) photographed his shield.



After PO Ladson viewed his BWC footage, which showed that he said, “Once I start hearing ‘lawsuit,’ and I’m getting sued, you have to go,” he testified that he meant that once somebody says that they are going to file a lawsuit, he chooses not to exercise discretion because if someone files a complaint, the officer has “nothing to go on.” He reiterated that he intended to issue a summons to § 87(2)(b) from the point that she tried to get into the vehicle and was disorderly. Upon viewing his BWC footage, in which he said, “When she started taking pictures of my shield, saying you’re gonna sue me, yeah you’re getting a summons,” PO Ladson testified that he did not mean anything by that remark.

PO Ladson issued § 87(2)(b) a summons for disorderly conduct, in violation of subsection six of New York Penal Law § 240.20 (BR 01). He wrote in the summons that § 87(2)(b) “...did in fact walk into officer path trying to get into car, disobeying [the arresting officer’s] order to move away.”

§ 87(2)(g)  
The BWC footage shows that § 87(2)(b) did not hold her phone within a few inches of PO Ladson’s face or wave it phone back and forth for five to ten seconds. Rather, § 87(2)(b) was at least a foot away from PO Ladson, took a quick picture, and did not block his vision. The BWC footage also shows that, in contrast to PO Ladson’s testimony, § 87(2)(b) did not yank on the car door handle, did not disobey PO Ladson’s order to step back, did not attempt to enter the vehicle aside from initially walking toward the door, and did not curse, yell, or scream. Additionally, a crowd did not gather while § 87(2)(b) and PO Ladson were arguing beside the vehicle.

Individuals have a right to lawfully record police activity. This right to record can be limited based upon officer safety concerns or when a violation of law is committed. Officers cannot intentionally block or obstruct recording devices when there is no legitimate law enforcement reason to do so. An arrest for OGA requires “actual interference with the performance of an official police function.” Patrol Guide Procedure 203-29 (BR 15).

A person is guilty of disorderly conduct when, with an intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he or she: (1) engages in fighting or in violent, tumultuous, or threatening behavior; (2) makes unreasonable noise; (3) uses abusive or obscene language, or makes an obscene gesture; (4) without lawful authority, disturbs any lawful assembly; (5) obstructs vehicular or pedestrian traffic; (6) congregates with other persons in a public place and refuses to comply with an order to disperse; or (7) creates a hazardous or physically offensive condition. New York Penal Law § 240.20 (BR 16).

“Critical to a charge of disorderly conduct is a finding that defendant’s disruptive statements and behavior were of a public rather than an individual dimension.” “The risk of public disorder does not have to be realized but the circumstances must be such that the defendant’s intent to create such a threat (or reckless disregard thereof) can be readily inferred.” In determining whether such an intent can be inferred, courts use “a contextual analysis that turns on the consideration of many factors, including ‘the time and place of the episode under scrutiny; the nature and character of the conduct; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances.’” *People v. Baker*, 20 N.Y.3d 354 (2013) (BR 44).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

**Allegation (E) Abuse of Authority: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Jamal Moya searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

It is undisputed that PO Moya searched § 87(2)(b) vehicle, which § 87(2)(b) was using at the time of the vehicle stop.

§ 87(2)(b) recounted that PO Moya searched her vehicle after he and PO Ladson arrested § 87(2)(b). § 87(2)(b) could not describe which part of the vehicle PO Moya searched aside from saying that he was focused on “the middle.” PO Moya placed one knee on the driver’s seat and his body was inside the vehicle. § 87(2)(b) did not know why PO Moya was searching and he did not remove anything from the vehicle. He was inside of the vehicle for approximately 15 seconds.

In PO Moya’s BWC footage (BR 03, at 06:30), PO Moya handcuffs § 87(2)(b). The officers explain that § 87(2)(b) has open warrants from two unanswered summonses: one for disorderly conduct and one for possession of marijuana. At 10:46, PO Ladson asks PO Moya if he searched the driver’s seat of the vehicle. PO Moya then opens the front driver’s side door of the vehicle and leans his body inside the car. PO Moya briefly searches the driver’s seat area, and it sounds like he opens and closes the center console. At 11:20, PO Ladson asks PO Moya if he searched the vehicle and PO Moya replies, “Yeah, there’s nothing.” In PO Ladson’s BWC footage (BR 04, at 14:15), § 87(2)(b) asks if he is going to Central Booking for the outstanding warrants regarding disorderly conduct and possession of marijuana. PO Ladson asks § 87(2)(b) “You got weed on you still? You still got weed on you now?” § 87(2)(b) tells PO Ladson that he has a bag of marijuana in his pocket. This occurs several minutes after PO Moya searches § 87(2)(b) vehicle. At that point, § 87(2)(b) is handcuffed and sitting in the police vehicle with PO Ladson. At 26:40, PO Thomas recovers a Ziploc bag of a green leafy substance consistent with marijuana from § 87(2)(b) person. PO Ladson and PO Moya do not make any statements about smelling the odor of marijuana or observing marijuana inside § 87(2)(b) vehicle at any point. PO Ladson does not search § 87(2)(b) vehicle at any point. At the conclusion of the incident, § 87(2)(b) drives away in her vehicle.

PO Ladson prepared a Marijuana Supporting Deposition Field Test Report (BR 20), in which he documented that he recovered a bag of marijuana from the center console inside the vehicle § 87(2)(b). PO Ladson wrote § 87(2)(b) a summons for unlawful possession of marijuana (BR 02), which detailed that he personally observed § 87(2)(b) with a clear Ziplock bag of marijuana. PO Ladson vouchered two Ziplock bags of marijuana (BR 21). Neither PO Ladson nor PO Moye documented in their memo books that there was an odor of marijuana in the vehicle or that there were small quantities of marijuana throughout the vehicle (BR 22-23).

PO Moye testified that he smelled a strong odor of marijuana upon initially approaching the vehicle. The smell came from within the vehicle, but PO Moye could not tell from where specifically it was emanating. He could not tell if the marijuana was burnt or unburnt. PO Moye did not recall observing any contraband in the vehicle while approaching it. Either PO Moye or PO Ladson searched the vehicle, which was based on the open warrants and a strong odor of marijuana coming from the vehicle. PO Moye did not recall if contraband was found and did not know if marijuana was found. § 87(2)(b) open warrants factored into the search because the officers could have brought the car to the command and searched it there, though PO Moye did not think that they were going to seize the vehicle. PO Moye did not testify that there were small quantities of marijuana throughout the vehicle. Upon watching his BWC footage, PO Moye stated that the footage correlated with his earlier testimony about searching the vehicle, and he did not provide any additional details about the vehicle search.

PO Ladson's testimony was generally consistent with PO Moye's, though he recounted that he both he and PO Moye searched the vehicle. PO Ladson searched the vehicle because there was an odor of marijuana emanating from the vehicle and because officers could have seized the vehicle and searched it at the stationhouse. He initially testified that he was not sure if officers recovered marijuana from the vehicle. After viewing his BWC footage and the Marijuana Supporting Deposition he prepared, PO Ladson testified for the first time that that he observed small leaves of marijuana throughout the entire vehicle.

PO Thomas testified (BR 17) that she searched § 87(2)(b) incident to his arrest, before lodging him in her vehicle for transport. PO Thomas did not remember if any marijuana was recovered from § 87(2)(b) person. Upon viewing PO Ladson's BWC footage, PO Thomas confirmed that she saw herself remove an object from § 87(2)(b) pocket, but she was not sure whether it was marijuana. PO Lettini and PO Fratto testified (BR 18-19) that they responded to the location to provide blank summonses to PO Ladson and PO Moye, and that they did not interact with any civilians. PO Thomas, PO Lettini, and PO Fratto did not testify to smelling an odor of marijuana at any point.

The BWC footage shows that PO Ladson and PO Moye did not know that § 87(2)(b) had marijuana on his person until § 87(2)(b) admitted as much to PO Ladson. PO Ladson appeared to ask § 87(2)(b) whether he had marijuana solely after he mentioned his prior summons for marijuana possession. Prior to that point – approximately 14 minutes since the interaction began – PO Ladson and PO Moye did not make any statements about smelling an odor of marijuana, did not question § 87(2)(b) or § 87(2)(b) about possessing marijuana, did not mention observing marijuana inside the vehicle, and did not make any statements at all about marijuana. PO Moye, who searched § 87(2)(b) vehicle, did not testify that there were small leaves of marijuana throughout it, nor did either PO Ladson or PO Moye document in their memo books that there was an odor of marijuana or that there were small quantities of marijuana in the vehicle. Additionally, PO Thomas, PO Lettini, and PO Fratto did not testify that they smelled an odor of marijuana. Although it is clear that § 87(2)(b) had Ziplock bags of marijuana on his person, the BWC footage indicates that PO Ladson and PO Moye sat inside an enclosed police vehicle with him for



an extended period of time without realizing he had marijuana. As a result, the investigation did not credit PO Ladson and PO Moye's testimony that they smelled such an odor emanating from § 87(2)(b) vehicle.

The courts have addressed various circumstances when officers may lawfully conduct a vehicle search without a warrant. When a vehicle occupant has been arrested, officers may conduct a limited search incident to the arrest, in order to protect against the danger that an arrestee may gain access to a weapon or may be able to destroy or conceal evidence. Such a search may only be conducted when the arrestee is unsecured and within reaching distance of the passenger compartment at the time of the search. Additionally, officers may search the passenger compartment when they have reason to believe that the vehicle contains evidence related to the offense for which the occupant is being arrested. *Arizona v. Gant*, 556 U.S. 332 (2009) (BR 24). In addition, under the automobile exception, officers may search a vehicle and any containers found therein when they have probable cause to believe that the vehicle contains contraband, evidence of a crime, a weapon, or some means of escape. *People v. Belton*, 55 N.Y.2d 49 (1982) (BR 25). During a lawful vehicle stop, an officer may conduct a warrantless search of a vehicle and its occupants if that officer detects the odor of marijuana smoke, *People v. Chestnut*, 43 A.D.2d 260 (1974) (BR 26), or the general odor of marijuana, *People v. Smith*, 66 A.D.3d 514 (2009) (BR 27).

§ 87(2)(b) was handcuffed and seated in a police vehicle when PO Moye searched § 87(2)(b) vehicle, so there was no possibility that § 87(2)(b) could have reached into the vehicle and obtained a weapon or destroyed evidence. § 87(2)(b) was not in the vehicle when officers conducted the vehicle stop and arrested § 87(2)(b) nor was she considered under arrest at any point. § 87(2)(g)

It is therefore recommended that Allegation E be closed as **substantiated**.

**Allegation (F) Offensive Language: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)**

**Allegation (G) Discourtesy: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson spoke discourteously to § 87(2)(b)**  
In PO Ladson's BWC footage (BR 04, at 11:00), PO Ladson tells § 87(2)(b) regarding § 87(2)(b) § 87(2)(b). "This is nonsense, man. You gotta talk to this girl, take her to charm school." At 14:51, § 87(2)(b) asks why PO Ladson is being so hard on him. PO Ladson says, "I don't got time for her 'trying to get out the projects lawsuit.'" PO Ladson also tells § 87(2)(b) regarding § 87(2)(b) "Tell her to go get a job." The footage also shows PO Ladson making various comments throughout the incident expressing his belief that § 87(2)(b) behavior was disrespectful and improper.



his BWC footage, PO Ladson stated it appeared that an object attached to § 87(2)(b) clothing was cut, but he was not sure whether he or PO Thomas cut it off. PO Thomas had tried to loosen the object, but it was stuck to § 87(2)(b) body, so it had to be cut, as civilians are not allowed to go through the system with any articles hanging from their body.

PO Moyer and PO Thomas also testified that they did not recall whether PO Ladson cut off an object that was attached to § 87(2)(b) clothing prior to transport. Upon viewing BWC footage, PO Thomas explained that she did not independently recall what the issue was with the object or whether PO Ladson cut the object off § 87(2)(b) clothing.

The investigation determined that PO Ladson cut off the object hanging from § 87(2)(b) person, based on BWC footage that showed PO Thomas ask PO Ladson if he had a knife, the footage that showed PO Ladson's hand enter the frame, holding what appeared to be a knife, in the moment right before the object was removed from § 87(2)(b) person, and § 87(2)(b) immediate reaction whereupon he turned to face PO Ladson and said that the situation was "wild shit."

Upon effecting an arrest, officers should frisk the arrested person to ensure that they do not have any weapons, evidence, or contraband. This frisk/field search is performed primarily to ensure the personal safety of the arresting officer. Upon arrival at a police facility, the arresting officer shall conduct a thorough search of the prisoner's person and clothing, which includes the removal of outer garments (e.g., overcoats, jackets, sweaters, vests, hats, wigs, ties, belts, shoelaces, drawstrings, shoes, socks, handbags, wallets, etc.). Patrol Guide Procedure 208-05 (BR 34). Officers must give due respect to property and may only damage property if doing so is "reasonably necessary" to effectuate their duties. *Onderdonk v. State*, 170 Misc. 2d 155 (1996) (BR 35).

§ 87(2)(g) § 87(2)(b)  
§ 87(2)(b) § 87(2)(b)  
was rear-cuffed § 87(2)(g)  
§ 87(2)(b)  
It is therefore recommended that **Allegation H** be closed as **substantiated**.

**Allegation (I) Abuse of Authority: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson threatened § 87(2)(b) with the use of force.**

PO Ladson's BWC footage (BR 04, at 28:23) shows him telling § 87(2)(b) to get in the police vehicle. At that point, PO Ramirez and PO Thomas are on scene, and § 87(2)(b) is handcuffed. § 87(2)(b) says the police are doing "wild shit" and that he also could get "wild." PO Ladson says it is too late to get wild because he is already in handcuffs. § 87(2)(b) remarks that he will not be in handcuffs once he is at the stationhouse, and PO Ladson replies, "So we could get it on at the precinct, then. Let's get it on in the cell."

PO Ladson testified, after watching the aforementioned BWC footage, that when he told § 87(2)(b) "We can get it on in the precinct then, let's get it on in the cell," he did not mean anything. He was responding to § 87(2)(b) saying that he wanted to fight him. PO Ladson denied that his remark meant that he would fight § 87(2)(b) at the stationhouse and again explained that it did not mean anything.

Based upon the clear context, the investigation did not credit PO Ladson's testimony that his remark did not indicate that he would fight § 87(2)(b) at the stationhouse. Absent any credible



explanation from PO Ladson about what he meant by the remark, the investigation determined that PO Ladson's statement constituted a threat of force.

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody. Any use of force must be reasonable under the circumstances and not excessive. Patrol Guide Procedure 221-01 (BR 36).

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **substantiated**.

**Allegation (J) Discourtesy: On March 15, 2020, at Mother Gaston Boulevard and New Lots Avenue in Brooklyn, Police Officer Dana Ladson spoke discourteously to § 87(2)(b)**

PO Ladson's BWC footage shows him discussing the incident with § 87(2)(b). At 34:57, PO Ladson tells § 87(2)(b) "Grow some height." At 35:55, PO Ladson tells § 87(2)(b) "Go get a job," as he enters his police vehicle. § 87(2)(b) did not recount that PO Ladson spoke discourteously toward her.

PO Ladson testified that he did not recall if he told § 87(2)(b) that she needed to get a job. After viewing his BWC footage, PO Ladson confirmed that he told § 87(2)(b) "Grow some height." PO Ladson did not know what he meant by that remark and did not recall why he said it. Ladson did not know why he told § 87(2)(b) "Go get a job." He noted that § 87(2)(b) said during the incident that she worked for the Post Office, so his comment to her was not logical.

The NYPD is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. Officers must "maintain a higher standard of integrity than is generally expected of others." Patrol Guide Procedure 200-02 (BR 29).

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **substantiated**.

**Allegation (K) Untruthful Statement: On February 8, 2021, at 100 Church Street in Manhattan, Police Officer Dana Ladson provided a false official statement to the CCRB.**

As described above, PO Ladson testified that during the incident, § 87(2)(b) waved her phone back and forth in his face, a few inches from his face, for approximately five to ten seconds. PO Ladson provided the following testimony, which is found at 25:22 in his interview recording:

**Inv. O'Shea:** You mentioned that at one point, she put her camera in your face. Can you describe what specifically she was doing with the—is that with the camera on her phone?

**PO Ladson:** Yeah.

**Inv. O'Shea:** And when did that happen relative to her like trying to get into the car and all the things of that sort?

**PO Ladson:** I can't approximate a time. Like this —

**Inv. O'Shea:** You're just gesturing, holding your phone, and kind of waving it in front of, you're waving it in front of the camera, is that how she was waving it in front of your face?

**PO Ladson:** Yes.

**PBA Counsel Murray:** How close did she get to your face?

**PO Ladson:** She was inches from my face.

**PBA Counsel Murray:** In this situation, was it the proximity of the camera to your face that concerned you? How close she got to your face with the camera, with the phone?

**PO Ladson:** A car stop—I have to keep my eyes on my partner. I gotta also make sure he's safe. So, if she's distracting me here, I'm not watching what he's doing.

**Inv. O'Shea:** How long was her phone kind of inches from your face as you described earlier?

**PO Ladson:** I'm not sure, but it could've been approximately 5 to 10 seconds.

**Inv. O'Shea:** Did you ever take the phone away from her?

**PO Ladson:** Yes, I did.

**Inv. O'Shea:** Okay, and why did you take the phone away from her?

**PO Ladson:** It was blocking my vision.

After watching his BWC footage, which depicted the interaction where § 87(2)(b) took a photograph of his shield, PO Ladson provided the following testimony, which is found at 1:03:13 in his interview recording:

**Inv. O'Shea:** So, earlier you had said that she held the phone inches from your face for five to ten seconds. And in all the footage that we've watched, it doesn't look like that actually happened. So, can you explain to me that part of your testimony?

**PO Ladson:** That's what I recall.

**Inv. O'Shea:** Okay, understood. And so, seeing the video footage, do you—I understand that that's what you remember—do you wish to change that part of your testimony or is that what you still remember after seeing the video, or?

**PBA Counsel Murray:** Will you accept that this is what happened?

**Inv. O'Shea:** It's important that we get a full explanation from the officer—

PBA Counsel Murray then interjected, and he and Inv. O'Shea went back and forth about the matter. The interview then continued:

**Inv. O'Shea:** Officer, so, I know you described earlier what your recollection was and seeing the footage, like, do you, I guess, are you still sticking with that your recollection is what happened or are you disputing what's in the video?

**PBA Counsel Murray:** Are you [inaudible] what's on the video?

**Inv. O'Shea:** Counsel, I need an answer from the officer.

**PO Ladson:** What's on the video is the female defendant put her phone in my face. If you say out of your own opinion that the camera is not in my face, that's your opinion, sir. You're not an officer, you're not on the scene, so you cannot understand or describe what's going on from you watching the video, sir.

**Inv. O'Shea:** That's why I'm asking for your testimony as well, officer. And so, are you saying that in the portion of video we watched that her phone was within inches of your face, is that what you're saying?

**PO Ladson:** Whatever distance you feel sir, then that's what it is.

**Inv. O'Shea:** Officer, you haven't answered the question yet. The question is, in the portion of the video that we watched, are you saying that her phone was within inches of your face? It's a yes or no question.

**PBA Counsel Murray:** Are we talking ten inches, 12 inches, you're quibbling, he, he—

**Inv. O'Shea:** Counsel, I need you to stop interrupting because I need the officer to answer the question.

**PBA Counsel Murray:** I understand, but understand what we're doing, we're talking—he recounted his perception of the phone being close to his face, and he gave you inches. It's something I don't like people doing, but he did. Now he's saying—is this accurately reflect what she did that day [sic]?

**PO Ladson:** Yes it is.



**PBA Counsel Murray:** So, that's his corrected testimony.

**Inv. O'Shea:** Counsel, I asked a question and I need him to answer it. And the question was, is he saying that during the portion of the video that we watched, that her phone was inches from his face as he was describing earlier?

**PBA Counsel Murray:** Is that what you were talking about when you referred to the phone being close to your face?

**PO Ladson:** Yes.

Officers are categorically prohibited from intentionally making a false official statement, which is defined as “an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” A material fact is a “significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome.” When a member of the service is afforded an opportunity to recollect with the benefit of credible evidence, and the member makes a statement consistent with the evidence, the member’s prior statement will not be considered a false statement. Patrol Guide Procedure 203-08 (BR 37).

§ 87(2)(g)

After viewing BWC footage showing that the incident did not occur as he recounted, PO Ladson continued to maintain that § 87(2)(b) phone was in his face, while simultaneously avoiding direct questions about the discrepancy between his testimony and the footage.

PO Ladson’s testimony concerned material facts, as the proximity of § 87(2)(b) phone and the actions she took provided PO Ladson’s basis for interfering with her recording device and temporarily seizing her property. § 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

### Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been a party (BR 39-40).
- PO Ladson has been a member of the NYPD for 15 years and has been a subject in nine CCRB complaints and 20 allegations, two of which have been substantiated:
  - 201600537 involved a substantiated allegation of refusal to provide name/shield number against PO Ladson. The Board recommended Command Discipline A and the NYPD imposed Instructions.
  - 201908912 involved a substantiated allegation of entry of premises against PO Ladson. The Board recommended Instructions and the NYPD imposed Formalized Training.
  - § 87(2)(g)
- PO Moye has been a member of the NYPD for six years and has been a subject in six CCRB complaints and 14 allegations, one of which has been substantiated:
  - 201908912 involved a substantiated allegation of entry of premises against PO Ladson. The Board recommended Instructions and the NYPD imposed Formalized Training.
  - Two complaints against PO Moye (202001952 § 87(2)(g)) remain under investigation.
  - § 87(2)(g)

### Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 7, 2020, the NYC Office of the Comptroller has no record of any Notice of Claim filed regarding this incident (BR 41).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 5

Investigator: Laura Strauss SI Laura Strauss February 23, 2022  
Signature Print Title & Name Date

Squad Leader: Daniel Giansante IM Daniel Giansante February 23, 2022  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date

CCRB Case # 202002163